

The Decree Holder counsel filed execution petition for the recovery of amount of Rs.1,09,897/- in the dispute No.DRB/SZ/CFS/16/2011-12 dated 28.03.2013 passed by the Deputy Registrar of Chits South Zone, Chamarajapet, Bengaluru

The Decree Holder prayed in the execution petition praying to transfer the decree for execution in that Court as JDRs are residing in the jurisdiction of Prl. Civil Judge Court at Chittoor, Chittoor District, Andhra Pradesh. As per section 39 of C.P.C. it says as follows :

“39. Transfer of decree : (1) The Court which passed a decree may, on the application of the Decree Holder, send it for execution to another Court [of competent jurisdiction],-

a) if the person against whom the decree is passed actually and voluntarily resides or carries on business, or personally works for gain, within the local limits of the jurisdiction of such other Court, or

b) if such person has no property within the local limits of the jurisdiction of the Court which passed the decree sufficient to satisfy such decree and has

property within the local limits of the jurisdiction of such other Court, or

c) if the decree directs the sale or delivery of immovable property situate outside the local limits of the jurisdiction of the Court which passed it, or

d) if the Court which passed the decree considers for any other reason, which it shall record in writing, that the decree should be executed by such other Court.

2) The Court which passed a decree may of its own motion send it for execution to any subordinate Court of competent jurisdiction.

3) For the purposes of this section, a Court shall be deemed to be a Court of competent jurisdiction if, at the time of making the application for the transfer of decree to it, such Court would have jurisdiction to try the suit in which such decree was passed.

4) Nothing in this section shall be deemed to authorise the Court which passed a decree to execute such decree

against any person or property outside the local limit of its jurisdiction.”

While perusing the address of the JDR the main JDR P.Rajendra Naidu is residing in Chittoor District, Andhra Pradesh. Hence, this Court has no jurisdiction to execute the decree. Hence, the prayer of the Decree Holder is allowed. Office is hereby directed to transfer the decree for execution to Prl. Civil Judge Court at Chittoor, Chittoor District, Andhra Pradesh as per and in accordance with law.

IX Addl. City Civil & Sessions Judge,
Bengaluru